

Entity Defendants variously contend that Plaintiff is unable to “prove” his claims (see, *e.g.*, Support Memo at 8:12-14) and/or “does not present evidence” in support of the motion (see *id.* at 10:8-11.) At the pleading stage, Plaintiff is required to neither present evidence nor prove any matters.

Entity Defendants contend that “Plaintiff has not provided any specific facts that the Business Entity Defendants knowingly intended for Defendant CASTRO to cause injury against Plaintiff FLORES. There is no evidence that the Business Entity Defendants had advanced warning that a lawless assault against Plaintiff was actually imminent which the Business Entity Defendants willfully suppressed, or that the Business Entity Defendants had any ability *ab initio* to stop the assault.” (Support Memo at 8:14-20.)

None of the authority cited by Entity Defendants, however, supports the suggestion that, in order to support a pray for punitive damages, a plaintiff is required to plead that a defendant intended for the injury to occur. While such intention is certainly sufficient to support the prayer, it is not necessary. As the authority cited by Entity Defendants, and the authority discussed above, makes clear, allegations of “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others” or “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civil Code § 3294, subd. (c)(1) and (2).) As noted above, the Court finds that Plaintiff has adequately pled facts of these elements.

Finally, the Court finds no merit in Entity Defendants’ public policy arguments. Caselaw provides that punitive damages are appropriate in actions against residential landlords and property managers, where “pleadings sufficiently allege facts setting forth long existing physical conditions of the premises which portend danger for the tenants [and] set out that respondents knew of those conditions for up to two years, had power to make changes, but failed to take corrective and curative measures.” (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.) While the details of the allegations here differ in certain respects, the Court finds that the holding in *Penner v. Falk* is sufficient to foreclose the argument that permitting punitive damages in such circumstances is against public policy.

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In The Matter of Cameron Dean Busquaert

26CV001237

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

